§ 259.4 (e) shall be prepared on Form 4–1164 and shall be signed on behalf of the United States by the regional administrator or the acting regional administrator.

6. The existing text of § 259.16 is designated as paragraph (a) of that section and a new paragraph is added as paragraph (b). The section as amended reads:

§ 259.16 *Termination of contracts.* (a) The signing officer may terminate a contract at the request of the purchaser upon satisfactory showing that the termination will not adversely affect the public interest, and that all charges due the Government thereunder have been paid.

(b) Any contract, unexecuted in whole or in part, for the disposal under section 4 of the act of materials from lands, title to which is transferred to a future State upon its admission to the Union, and which is situated within its boundaries, may be terminated or adopted by such State in such manner as the State may by law determine.

7. The existing text of § 259.20 is designated as paragraph (a) of that section and a new paragraph is added as paragraph (b). The section as amended reads:

§ 259.20 *Duration of contract.* (a) The maximum periods which shall be allowed after the date of the contract, for the severance or extraction of the materials purchased, except as the contract may be extended in accordance with § 259.17, shall be as follows: For sales of $1,000 or less, one year; for sales of over $1,000 but not exceeding $10,000, two years; for sales over $10,000 but not exceeding $100,000, five years; and for sales exceeding $100,000, such term as shall be fixed in the notice of sale by the signing officer, except that in any contract for the sale of timber from an intermediate cutting the term of such contract may be fixed by the signing officer in his discretion in the notice of sale. The Regional Administrator may provide that contracts shall have maximum periods longer than those prescribed above in the case of timber sales in Alaska under this part, where in his opinion the allowance of such longer periods will promote the development of the Territory, and such period shall be stated in the notice of sale where one is required.

(b) Contracts on Form 4–1164 shall be for a term of not more than 5 years, as fixed in the notice of sale, and for so long thereafter as the material subject to the contract is being produced or removed in paying quantities.

(Sec. 1, 61 Stat. 681; 43 U. S. C. sup., 1185)

OSCAR L. CHAPMAN,
Secretary of the Interior.

NOVEMBER 9, 1950.

[F. R. Doc. 50–10196; Filed, Nov. 14, 1950; 8:47 a. m.]

Appendix—Public Land Orders

[Public Land Order 683]

CALIFORNIA

MODIFICATION OF EXECUTIVE ORDER NO. 6206 OF JULY 16, 1933

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, Executive Order No. 6206 of July 16, 1933, withdrawing certain lands in California in aid of proposed legislation withdrawing the lands for the protection of the water supply of the City of Los Angeles, is hereby modified to the extent necessary to permit locations and entries under the mining laws for nonmetalliferous mineral deposits on the following-described public lands:

MOUNT DIABLO MERIDIAN

T. 21 S., R. 37 E.,
Sec. 13, unsurveyed.

The area described contains 640 acres.

This order shall become effective at 10:00 a. m. on the 35th day after the date of this order.

NOVEMBER 9, 1950.

OSCAR L. CHAPMAN,
Secretary of the Interior.

[F. R. Doc. 50–10195; Filed, Nov. 14, 1950; 8:47 a. m.]

TITLE 44—PUBLIC PROPERTY AND WORKS

Chapter I—General Services Administration

Subchapter B—Personal Property Management

PART 55—PERSONAL PROPERTY DISPOSAL

MISCELLANEOUS AMENDMENTS

Effective November 9, 1950, the regulations in this part (15 F. R. 6492) are hereby revised as follows:

1. Section 55.2 *Terms defined in the act* is revised to read as follows:

§ 55.2 *Terms defined in the act.* Terms not defined in §§ 55.3 through 55.73 which are defined in the Federal Property and Administrative Services Act of 1949, as amended (Public Laws 152 and 754, 81st Congress), hereafter referred to in this part as the "act," shall in this part have the meaning given to them in the act.

2. Section 55.9 *Federal agency* is revised to read as follows:

§ 55.9 *Federal agency.* "Federal agency" means any executive agency or any establishment in the legislative or judicial branch of the Government (except the Senate, the House of Representatives, and the Architect of the Capitol and any activities under his direction).

3. Section 55.11 *Personal property* is revised to read as follows:

§ 55.11 *Personal property.* "Personal property" means property of any kind or any interest therein, except real property records of the Federal Government, and naval vessels of the following categories: battleships, cruisers, aircraft carriers, destroyers and submarines.

4. Sections 55.17 and 55.18 are added, reading as follows:

§ 55.17 *Contractor inventory.* "Contractor inventory" means (a) any property acquired by and in the possession of a contractor or subcontractor (including Government-furnished property) under a contract pursuant to the terms of which title is vested in the Government, and in excess of the amounts needed to complete full performance under the entire contract; and (b) any property which the Government is obligated or has the option to take over under any type of contract as a result either of any changes in the specifications or plans thereunder or of the termination of such contract (or subcontract thereunder), prior to completion of the work, for the convenience or at the option of the Government.

§ 55.18 *Public health institution.* "Public health institution" means any tax-supported medical institution, hospital, clinic and health center, any other nonprofit medical institution, hospital, clinic, and health center which has been held exempt from taxation under section 101 (6) of the Internal Revenue Code, and any State department of health or other State agency designated by State law to receive property for and distribute it to such tax-supported and nonprofit medical institution, hospitals, clinics, and health centers within the State.

5. Section 55.22 *Other objectives*, paragraph (f), is revised to read as follows:

(f) Strengthen and encourage the development and expansion of the education and public health programs.

6. The first sentence of § 55.31 *Scope* is revised to read as follows: "This subpart implements section 203 (j) of the act, providing for the donation of certain surplus property to edcuational and public health institutions and service educational activities."

7. Section 55.32 *Needs of Federal agencies paramount* is revised to read as follows:

§ 55.32 *Needs of Federal agencies paramount.* Any need for personal property expressed by any Federal agency (including the Senate, the House of Representatives, the Architect of the Capitol and any activities under his direction, the District of Columbia and mixed-ownership Government corporations) shall be paramount to any educational use determination or allocation by the Federal Security Administrator or the Secretary of Defense, if such need shall be made known to the holding agency prior to shipment or delivery to donees pursuant to this subpart.

8. The center head above § 55.35 is changed to read "Educational and Public Health Institutions."

9. Section 55.35 *Responsibility of Federal Security Administrator* is revised to read as follows: